

BEFORE THE LICENSED PROFESSIONAL COUNSELOR EXAMINERS BOARD

STATE OF COLORADO

OAC Case No. PCE 2010-0001

Case No. 2009-000498

FINAL AGENCY ORDER

IN THE MATTER OF THE DISCIPLINARY PROCEEDINGS REGARDING JULIANA
JOAN WHITESELL, LPP, LICENSE NO. 1119

Respondent.

The Licensed Professional Counselor Examiners Board (the "Board"), pursuant to and after formal proceedings before a duly qualified Administrative Law Judge in accordance with the provisions of Article 43, Title 12, of the Mental Health Practice Act, of the Colorado Revised Statutes ("Act") and the Administrative Procedures Act ("APA"), and having reviewed the ALJ's Initial Decision, hereby enters the following findings and order:

BACKGROUND

1. Respondent was served with the Notice of Duty to Answer, Notice of Hearing and Notice of Charges, and Option to Engage in Alternative Dispute Resolution ("NOC") on or about July 1, 2010. To summarize, the Notice of Charges alleges the following:
 - a. On September 6, 2007, Respondent received her license as a provisional licensed professional counselor ("LPP"), and was so licensed until her provisional license lapsed on August 31, 2009. Respondent did not seek renewal of her LPP license.
 - b. The Board has jurisdiction over Respondent and the subject matter of this action.
 - c. On July 6, 2007, Respondent submitted a cover letter and an application for employment to the Griffith Centers for Children (Griffith Centers).
 - d. In her July 6, 2007 cover letter, Respondent stated that she was currently registered with the Department of Regulatory Agencies (DORA) as an unlicensed psychotherapist, and that she was "eligible" for a provisional license as a professional counselor.

- e. Respondent has never been listed as an unlicensed psychotherapist in the Colorado State Grievance Board Database ("Database")(now known as the State Board of Registered Psychotherapists).
 - f. Respondent has never been licensed as a professional counselor ("LPC") by the Colorado Licensed Professional Counselor Examiners Board.
 - g. Respondent was hired by the Griffith Centers as a therapist, and was employed by the Griffith Centers as a therapist from on or about July 25, 2007, until her termination on or about July 25, 2008.
 - h. As a therapist at the Griffith Centers, Respondent provided psychotherapy, as that term is defined in sections 12-43-201(9) and 12-43-701(3), C.R.S. (2010), for compensation to residents of the Griffith Centers. Dr. Cheryl Downey was Respondent's supervisor at the Griffith Centers.
 - i. While employed at the Griffith Centers, Respondent used the title "LPC" on a client Disclosure Statement dated July 8, 2008. Respondent also used the LPC title on disclosure statements she signed prior to July 8, 2008.
 - j. Respondent was informed by Dr. Downey that she could not use the LPC title on her disclosure statements because she was not so licensed, and she stopped using that licensure designation.
 - k. On or about July 23, 2008, Dr. Downey went into Respondent's office and found two Child Abuse and Neglect Report forms on Respondent's desk. Respondent had completed the forms, but had not submitted the reports to a county department or a local law enforcement agency. The forms contain the following directive printed at the top: "To Be Completed at Time of Report Being Made and Submitted by End of Business Day."
 - l. Licensed Professional Counselors who have "reasonable cause to know or suspect that a child has been subjected to abuse or neglect" are required "immediately upon receiving such information report or cause a report to be made of such fact to the county department or local law enforcement agency." (Section 19-3-304(2)(x), C.R.S).
 - m. Respondent reported the alleged incidents of child abuse or neglect to her supervisor, Dr. Downey, but she did not file her completed forms with either the county department or local law enforcement. On July 29, 2008, after learning that Respondent had not yet submitted the forms, Dr. Downey reported the allegations that had been previously disclosed to Respondent to the appropriate authorities.
2. On July 26, 2010, Respondent submitted an answer to the NOC.

3. On December 1, 2010, the Board filed a Motion for Summary Judgment ("Motion") based on Respondent's answers.

4. Respondent did not file a response to the Motion.

5. On January 20, 2011, the Administrative Law Judge Michelle A. Norcross ("ALJ") granted the Board's Motion and found as a matter of law that the Board was entitled to judgment on all three counts charged in the Board's NOC.

6. On March 7, 2011, a hearing on the appropriate sanction for the violations of Counts I, II and III was held before the ALJ. The Board was represented by Laurie Rottersman, Assistant Attorney General. Respondent appeared and represented herself.

7. The Initial Decision of the ALJ was rendered and received by the Board on April 6, 2011. A copy of the Initial Decision is attached to this Order. The Initial Decision is incorporated herein by reference.

8. The Initial Decision was served on Respondent and the Board's disciplinary counsel on April 12, 2011, via first-class mail.

9. No exceptions have been filed on behalf of the Board or by the Respondent.

STANDARD OF REVIEW

10. C.R.S. § 24-4-105(15)(b) provides the standard under which the Board reviews a finding of evidentiary fact:

The findings of evidentiary fact, as distinguished from ultimate conclusions of fact, made by the administrative law judge or the hearing office shall not be set aside by the agency on review of the initial decision unless such findings of evidentiary fact are contrary to the weight of the evidence.

The "weight of the evidence" standard requires the Board to discover a clear error in the ALJ's findings before setting them aside. *Samaritan Inst. v. Prince-Walker*, 883 P.2d 3, 10 (Colo. 1994). Further, the Board must defer to the ALJ's findings of credibility and assessment of the weight given to evidence *Id.* It is the role of the ALJ, not the Board, to resolve conflicts in evidence. *Board of Dental Examiners v. Micheli*, 928 P.2d 839, 841 (Colo. App. 1996).

11. Evidentiary facts are the historical facts underlying a controversy. In contrast, ultimate facts are conclusions of law or mixed questions of law and fact that are based on evidentiary facts and determine the rights and liabilities of the parties. As a general rule, ultimate facts are phrased in the language of the controlling statute or legal standard. *Board of Dental Examiners v. Major*, 996 P.2d 246, 248 (Colo. App. 1998). The Board may substitute its judgment for that of the ALJ with respect to findings of ultimate fact so long as

the Board's determination has a reasonable basis in law and is supported by substantial evidence in the record. *Id.*

ANALYSIS

I. Procedural Review

14. C.R.S. § 24-4-105(14)(a)(II) provides that a respondent will have thirty days after service of an initial decision to file exceptions to an initial decision. The Respondent never filed exceptions. *Lanphier v. Department of Pub. Health & Env't*, 179 P.3d 148, 151-53 (Colo. App. 2007).

15. Although C.R.S. § 24-4-105(14)(b)(III) provides that if a respondent fails to file exceptions, the initial decision shall become the decision of the agency, the agency nonetheless initiated review of the initial decision on its own motion under C.R.S. § 24-4-105(14)(a)(II) by order dated April 12, 2011. Subsection (14) is not intended to limit the jurisdiction of an agency to review an initial decision outside of the thirty-day period so long as the agency's motion to review was timely made. *Cornell v. State Bd. Of Pharmacy*, 813 P.2d 771 (Colo. App. 1990).

II. Substantive Review

17. Respondent has not challenged the evidentiary findings of fact relating to her improper use of a restricted title or her failure to report child abuse. Substantively, then, the Board can only review the legal conclusions.

18. C.R.S. § 12-43-216 provides that Respondent is in violation of the statute if she held herself out to the public by any title or description of services, constituting use of a restricted title. Respondent has never been licensed as a licensed professional counselor by the Board of Licensed Professional Counselor Examiners. Respondent has never been listed by the State Grievance Board. Respondent utilized the term "LPC" on client disclosure statements during which time she was a provisionally licensed professional counselor and not a licensed professional counselor.

19. C.R.S. § 12-43-702.5(3) provides that no unlicensed person may practice psychotherapy if such person is not included in the Database required by this section. Respondent is in violation of the statute in that Respondent provided psychotherapy to residents of the Griffith Centers at a time when she was not licensed to provide psychotherapy and was not listed as an unlicensed psychotherapist in the Colorado Database.

20. C.R.S. § 19-3-304(1)(a) sets forth the requirements for reporting suspected child abuse. Respondent did not immediately report or cause a report to be made of the allegations of child abuse to either a county department or a local law enforcement, in violation of the statute.

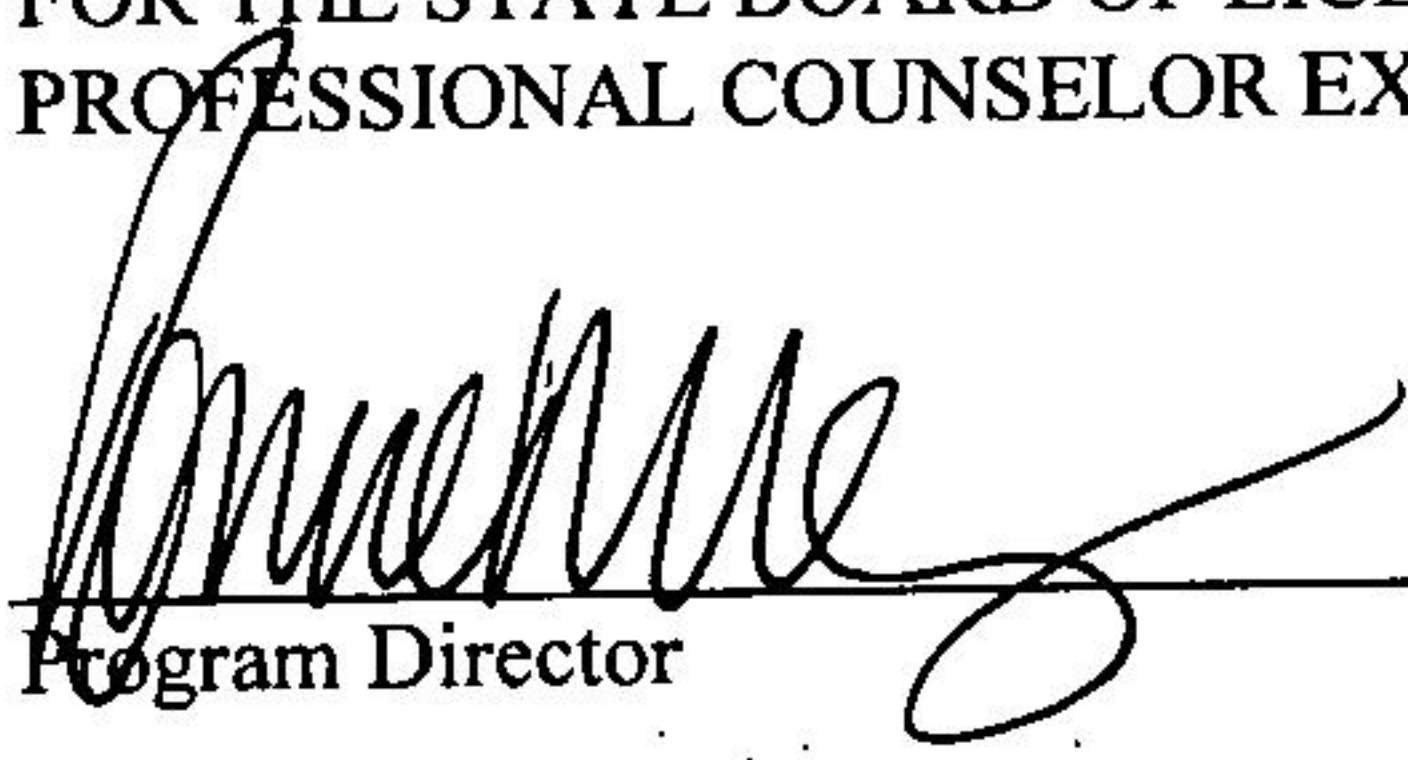
CONCLUSION

20. Upon review of the Initial Decision and Record, the Board hereby:
- a. Accepts Findings of Fact, Paragraphs 1 through 15.
 - b. Adopts Conclusions of Law, Paragraphs 1-9.
 - c. Adopts the recommended sanction in the last paragraph, specifically that Respondent's license to practice as a provisional licensed professional counselor is revoked.

IT IS THEREFORE ORDERED by the Board that Respondent's license to practice as a professional counselor is revoked from the effective date of this Final Agency Order. The Final Agency Order is hereby effective upon signature.

SO ORDERED this 13th day of July, 2011.

FOR THE STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS



Program Director

STATE OF COLORADO OFFICE OF ADMINISTRATIVE COURTS 633 17 th Street, Suite 1300 Denver, Colorado 80202		
STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS, Petitioner,		▲ COURT USE ONLY ▲
VS.		
JULIANA JOAN WHITESELL, LPP, License No. 1119 Respondent.		CASE NUMBER: PCE 2010-0001
INITIAL DECISION		

Respondent was licensed as a provisional licensed counselor by the State Board of Licensed Professional Counselor Examiners (Board) in September 2007. On July 1, 2010 the Board filed A Notice of Duty to Answer, Notice of Hearing and Notice of Charges (NOC) with the Office of Administrative Courts (OAC). On July 26, 2010 Respondent submitted an answer to the NOC. Based on Respondent's answers, on December 1, 2010 the Board filed a Motion for Summary Judgment. Respondent did not file a response to the motion. In an order dated January 20, 2011, the undersigned Administrative Law Judge (ALJ) granted the Board's motion and found as a matter of law that the Board was entitled to judgment on all three counts charged in the Board's NOC. Hearing on the appropriate sanction for the violations of Counts I, II and III was held before ALJ Michelle A. Norcross at the OAC in Denver, Colorado on March 7, 2011. The Board was represented by Laurie Rottersman, Assistant Attorney General. Respondent appear at the hearing and represented herself. The proceedings were digitally recorded in courtroom 2.

ISSUES PRESENTED

The Board has established that Respondent violated sections 12-43-222(1)(b) and (g) as well as sections 12-43-216 and 12-43-702.5(3), C.R.S. The remaining issue is what is the appropriate sanction for these violations.

FINDINGS OF FACT¹

1. Respondent was licensed as a provisional licensed professional counselor (LPP) in the State of Colorado on September 6, 2007. Her provisional license lapsed on

¹ The facts in this case were established by the pleadings filed by the parties, specifically Respondent's Answer to the NOC and the Board's Motion for Entry of Summary Judgment with accompanying Exhibits 1 – 4.

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MENTAL HEALTH BOARD

August 31, 2009. Respondent has not sought renewal of her LPP license.

2. The Board has jurisdiction over Respondent's license, although now lapsed, and the subject matter of this proceeding.

3. On July 6, 2007 Respondent submitted a cover letter and an application for employment to the Griffith Centers for Children (Griffith Centers).

4. In her July 6, 2007 cover letter, Respondent stated that she was currently registered with the Department of Regulatory Agencies (DORA) as an unlicensed psychotherapist, and that she was "eligible" for a provisional license as a professional counselor.

5. On her application for employment, Respondent stated that she was currently registered with DORA as an unlicensed psychotherapist.

6. Respondent has never been licensed as a professional counselor (LPC) by the Board.

7. Respondent has never been listed as an unlicensed psychotherapist in the Colorado State Grievance Board database.

8. Respondent's statements in her July 6, 2007 cover letter and application for employment regarding her DORA registration and licensing eligibility were false.

9. Respondent was hired by the Griffith Centers as a therapist on July 25, 2007. She worked there until July 9, 2008. Respondent was terminated on July 8, 2008.

10. As a therapist at the Griffith Centers, Respondent provided psychotherapy, as that term is defined in sections 12-43-201(9) and 12-43-701(3), C.R.S., for compensation to residents of the Griffith Centers. Dr. Cheryl Downey was Respondent's supervisor at the Griffith Centers.

11. While Respondent was employed at the Griffith Centers she used the title "LPC" on a client Disclosure Statement dated July 8, 2008. Respondent also used the LPC title on disclosure statements she signed prior to July 8, 2008.

12. When Respondent was informed by Dr. Downey that she could not use the LPC title on her disclosure statements because she was not so licensed, she stopped using that licensure designation.

13. On or about July 23, 2008 Dr. Downey went into Respondent's office and found two Child Abuse and Neglect Report forms on Respondent's desk. Respondent had completed the forms, but had not submitted the reports to a county department or a local law enforcement agency. The forms contain the following directive printed at the top: "To Be Completed at Time of Report Being Made and Submitted by End of

Business Day." The incidents of child abuse or neglect described in the two reports had been disclosed to Respondent on July 4, 2008 and also, at least, one month prior by the alleged victim.

14. Colorado's child welfare laws require licensed professional counselors who have "reasonable cause to know or suspect that a child has been subjected to abuse or neglect" to "immediately upon receiving such information report or cause a report to be made of such fact to the county department or local law enforcement agency". (Section 19-3-304(2)(x), C.R.S.)

15. Respondent reported the alleged incidents of child abuse or neglect to her supervisor, Dr. Downey, but she did not file her completed forms with either the county department or local law enforcement. On July 29, 2008, after learning that Respondent had not yet submitted the forms, Dr. Downey reported the allegations that had been previously disclosed to Respondent to the appropriate authorities.

CONCLUSIONS OF LAW

1. The Board possesses jurisdiction over Respondent's license and the subject matter of these proceedings. Section 12-43-101, C.R.S.

2. A psychologist, social worker, marriage and family therapist, professional counselor, or addiction counselor may only use the title for which he or she is licensed, certified, or registered under this article. Except as provided in section 12-43-306 (3), no other person shall hold himself or herself out to the public by any title or description of services incorporating the terms "licensed clinical social worker", "clinical social worker", "LCSW", "licensed social worker", "LSW", "marriage and family therapist", "LMFT", "professional counselor", "LPC", "psychologist", "psychologist candidate", "psychology", "psychological", "addiction counselor", "licensed addiction counselor", "LAC", "certified addiction counselor", or "CAC", and no other person shall state or imply that he or she is licensed to practice social work, marriage and family therapy, professional counseling, psychology, or addiction counseling. Section 12-43-216, C.R.S.

3. Respondent's use of "LPC" on client disclosure statements, at the time she was a provisionally licensed professional counselor and not a licensed professional counselor, constitutes use of a restricted title and is a violation of section 12-43-216, C.R.S.

4. "Psychotherapy" means the treatment, diagnosis, testing, assessment, or counseling in a professional relationship to assist individuals or groups to alleviate mental disorders, understand unconscious or conscious motivation, resolve emotional, relationship, or attitudinal conflicts, or modify behaviors which interfere with effective emotional, social, or intellectual functioning. Psychotherapy follows a planned procedure of intervention which takes place on a regular basis, over a period of time, or in the cases of testing, assessment, and brief psychotherapy, it can be a single intervention. It is the intent of the general assembly that the definition of psychotherapy as used in this

part 2 be interpreted in its narrowest sense to regulate only those persons who clearly fall within the definition set forth in this subsection (9). Section 12-43-202(9), C.R.S. See also, Section 12-43-701(3), C.R.S.

5. No unlicensed person may practice psychotherapy if such person is not included in the data base required by this section. Notwithstanding the requirements of this section, no unlicensed psychotherapist may use the term "registered", "regulated", "certified", "clinical", "state-registered", "state-approved", or any other term or abbreviation that would falsely give the impression that the psychotherapist or the service that is being provided is recommended by the state, based solely on inclusion in the data base. Section 12-43-702.5(3), C.R.S.

6. Respondent provided psychotherapy to residents of the Griffith Centers at a time when she was not licensed to provide psychotherapy and was not listed in as an unlicensed psychotherapist in the Colorado State Grievance Board's database, in violation of Section 12-43-702.5(3), C.R.S.

7. Under section 19-3-304(1)(a), C.R.S., except as otherwise provided by section 19-3-307, sections 25-1-122 (4) (d) and 25-4-1404 (1) (d), C.R.S., and paragraph (b) of this subsection (1), any person specified in subsection (2)² of this section who has reasonable cause to know or suspect that a child has been subjected to abuse or neglect or who has observed the child being subjected to circumstances or conditions that would reasonably result in abuse or neglect shall immediately upon receiving such information report or cause a report to be made of such fact to the county department or local law enforcement agency.

8. Although Respondent informed her supervisor, Dr. Downey, about the child abuse/neglect allegations that were disclosed to her in July 2008, Respondent did not immediately report or cause a report to be made of the allegations to either the county department or local law enforcement, in violation of section 19-3-304(1)(a), C.R.S.

9. Pursuant to section 12-43-222(1), C.R.S., a person licensed, registered, certified, or regulated under part 3, 4, 5, 6, 7, or 8 of this article is in violation of this article if such person:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article or rule promulgated pursuant to this article or any order of a board established pursuant to this article.

² Subsection (2) includes but is not limited to licensed professional counselors. See, section 19-3-304(2)(x), C.R.S.

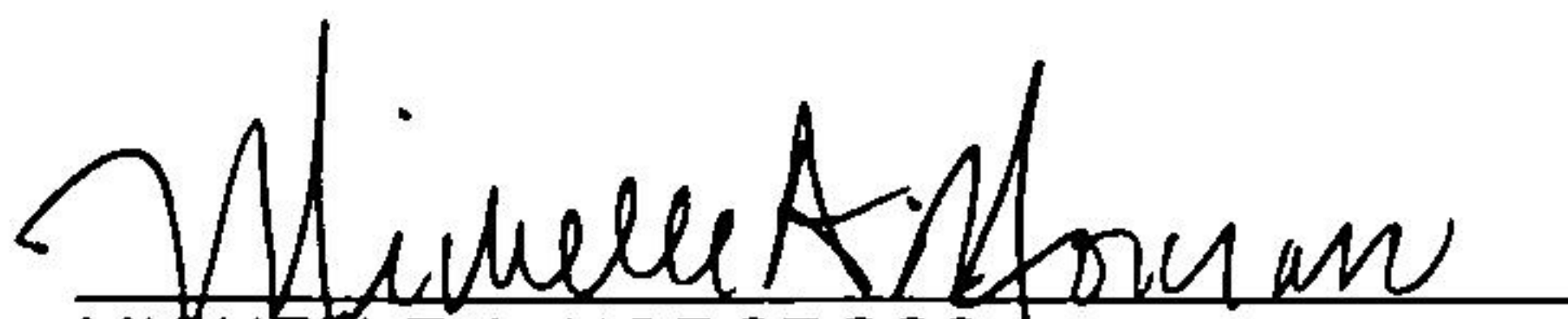
INITIAL DECISION

It is the Initial Decision of the ALJ that while Respondent was licensed as a provisional licensed professional counselor, Respondent used a restricted title on a client disclosure statement, engaged in the unlicensed practice of psychotherapy without being listed in the unlicensed psychotherapists data base and failed to comply with the child abuse and neglect reporting requirements of the Children's Code, all in violation of section 12-43-222, C.R.S.

In accordance with section 12-43-223(1), C.R.S., if a licensee, registrant, or unlicensed psychotherapist has violated any of the provisions of section 12-43-222, the Board may deny, revoke, or suspend any license or registration or the listing of any unlicensed psychotherapist in the grievance board data base; issue a letter of admonition to a licensee, registrant, or unlicensed psychotherapist; issue a confidential letter of concern to a licensee, registrant, or unlicensed psychotherapist; place a licensee, registrant, or unlicensed psychotherapist on probation; or apply for an injunction pursuant to section 12-43-227 to enjoin a licensee, registrant, or unlicensed psychotherapist from practicing the profession for which such person is licensed, registered, or regulated. Notwithstanding the fact that Respondent's license has already lapsed and Respondent has not sought renewal thereof, the Board seeks revocation of her LLP license. Respondent is not currently residing in the state and is not practicing in any capacity in any other state as a licensed professional counselor. At hearing, Respondent accepted full responsibility for her actions that lead to the filing of the charges in this case. She stated that she is not certain whether she will return to Colorado or reapply for licensure in the future, but would like the opportunity to reapply without having a revocation action imposed against her prior LLP license.

The ALJ has considered the parties' positions regarding the appropriate sanction and finds sufficient evidence to impose the sanction of revocation. While not condoning the unlicensed practice of psychotherapy or use of a restricted title, the most serious violation in this case and the one that cannot be overlooked is Respondent's failure to report the allegations of child abuse/neglect that were disclosed to her in July 2008. It was prudent of Respondent to report the allegations to her supervisor but her responsibility as a mandatory reporter goes beyond telling her supervisor. She was required to report it or cause it to be reported to the county department or local law enforcement and she did not. Accordingly, the ALJ recommends that Respondent's LLP license be revoked. Respondent may reapply in accordance with the statutes governing mental health licensure and may, at that time, present evidence to the Board as to why she should be approved despite the findings in this Initial Decision.

DONE AND SIGNED this 6th day of April, 2011.


MICHELLE A. NORCROSS
Administrative Law Judge